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concluded that the requirement “cannot be considered a substantial obstacle to obtaining an abortion, and, *it follows*, there is no undue burden.” *Id.*, at 883 (emphasis added).

With regard to the State’s requirement that a physician, as opposed to a qualified assistant, provide the woman this information, the opinion reasoned: “*Since* there is no evidence on this record that requiring a doctor to give the information as provided by the statute would amount in practical terms to a substantial obstacle to a woman seeking an abortion, we conclude that it is not an undue burden.” *Id.*, at 884–885 (emphasis added). This was so “even if an objective assessment might suggest that those same tasks could be performed by others,” meaning the law had little if any benefit. *Id.*, at 885.

The only restriction *Casey* found unconstitutional was Pennsylvania’s spousal notification requirement. On that score, the Court recited a bevy of social science evidence demonstrating that “millions of women in this country . . . may have justifiable fears of physical abuse” or “devastating forms of psychological abuse from their husbands.” *Id.*, at 893 (opinion of the Court). In addition to “physical violence” and “child abuse,” women justifiably feared “verbal harassment, threats of future violence, the destruction of possessions, physical confinement to the home, the withdrawal of financial support, or the disclosure of the abortion to family and friends.” *Ibid.* The spousal notification requirement was “thus likely to prevent a significant number of women from obtaining an abortion.” *Ibid.* It did not “merely make abortions a little more difficult or expensive to obtain; for many women, it [imposed] a substantial obstacle.” *Id.*, at 893–894. The Court emphasized that it would not “blind [itself] to the fact that the significant number of women who fear for their safety and the safety of their children are likely to be deterred from procuring an abortion as surely as if the Commonwealth had outlawed abortion in all cases.” *Id.*, at 894.

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The upshot of *Casey* is clear: The several restrictions that did not impose a substantial obstacle were constitutional, while the restriction that did impose a substantial obstacle was unconstitutional.

To be sure, the Court at times discussed the benefits of the regulations, including when it distinguished spousal notification from parental consent. See *Whole Woman's Health*, 579 U. S., at 607–608 (citing *Casey*, 505 U. S., at 887–898 (opinion of the Court)); *id.*, at 899–901 (joint opinion). But in the context of *Casey*'s governing standard, these benefits were not placed on a scale opposite the law's burdens. Rather, *Casey* discussed benefits in considering the threshold requirement that the State have a "legitimate purpose" and that the law be "reasonably related to that goal." *Id.*, at 878 (plurality opinion); *id.*, at 882 (joint opinion).

So long as that showing is made, the only question for a court is whether a law has the "effect of placing a substantial obstacle in the path of a woman seeking an abortion of a nonviable fetus." *Id.*, at 877 (plurality opinion). *Casey* repeats that "substantial obstacle" standard nearly verbatim no less than 15 times. *Id.*, at 846, 894, 895 (opinion of the Court); *id.*, at 877, 878 (plurality opinion); *id.*, at 883, 884, 885, 886, 887, 901 (joint opinion).²

²JUSTICE GORSUCH correctly notes that *Casey* "expressly disavowed any test as strict as strict scrutiny." *Post*, at 428 (dissenting opinion). But he certainly is wrong to suggest that my position is in any way inconsistent with that disavowal. Applying strict scrutiny would require "any regulation touching upon the abortion decision" to be the least restrictive means to further a compelling state interest. *Casey*, 505 U. S., at 871 (plurality opinion) (emphasis added). *Casey* however recognized that such a test would give "too little acknowledgment and implementation" to the State's "legitimate interests in the health of the woman and in protecting the potential life within her." *Ibid.* Under *Casey*, abortion regulations are valid so long as they do not pose a substantial obstacle and meet the threshold requirement of being "reasonably related" to a "legitimate purpose." *Id.*, at 878; *id.*, at 882 (joint opinion).

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The only place a balancing test appears in *Casey* is in Justice Stevens's partial dissent. "Weighing the State's interest in potential life and the woman's liberty interest," Justice Stevens would have gone further than the plurality to strike down portions of the State's informed consent requirements and 24-hour waiting period. *Id.*, at 916–920 (opinion concurring in part and dissenting in part). But that approach did not win the day.

Mazurek v. Armstrong places this understanding of *Casey*'s undue burden standard beyond doubt. 520 U. S. 968 (1997) (*per curiam*). *Mazurek* involved a challenge to a Montana law restricting the performance of abortions to licensed physicians. 520 U. S., at 969. It was "uncontested that there was insufficient evidence of a 'substantial obstacle' to abortion." *Id.*, at 972. Therefore, once the Court found that the Montana Legislature had not acted with an "unlawful motive," the Court's work was complete. *Ibid.* In fact, the Court found the challengers' argument—that the law was invalid because "all health evidence contradicts the [State's] claim that there is any health basis for the law"—to be "squarely foreclosed by *Casey* itself." *Id.*, at 973 (internal quotation marks omitted; emphasis added).

We should respect the statement in *Whole Woman's Health* that it was applying the undue burden standard of *Casey*. The opinion in *Whole Woman's Health* began by saying, "We must here decide whether two provisions of [the Texas law] violate the Federal Constitution as interpreted in *Casey*." 579 U. S., at 590. Nothing more. The Court explicitly stated that it was applying "the standard, as described in *Casey*," and reversed the Court of Appeals for applying an approach that did "not match the standard that this Court laid out in *Casey*." *Id.*, at 607, 608.

Here the plurality expressly acknowledges that we are not considering how to analyze an abortion regulation that does not present a substantial obstacle. "That," the plurality explains, "is not this case." *Ante*, at 343. In this case, *Casey*'s

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requirement of finding a substantial obstacle before invalidating an abortion regulation is therefore a sufficient basis for the decision, as it was in *Whole Woman's Health*. In neither case, nor in *Casey* itself, was there call for consideration of a regulation's benefits, and nothing in *Casey* commands such consideration. Under principles of *stare decisis*, I agree with the plurality that the determination in *Whole Woman's Health* that Texas's law imposed a substantial obstacle requires the same determination about Louisiana's law. Under those same principles, I would adhere to the holding of *Casey*, requiring a substantial obstacle before striking down an abortion regulation.

B

Whole Woman's Health held that Texas's admitting privileges requirement placed "a substantial obstacle in the path of women seeking a previability abortion," independent of its discussion of benefits. 579 U. S., at 591 (citing *Casey*, 505 U. S., at 878 (plurality opinion)).³ Because Louisiana's admitting privileges requirement would restrict women's access to abortion to the same degree as Texas's law, it also cannot stand under our precedent.⁴

³JUSTICE GORSUCH considers this is a "nonexistent ruling" nowhere to be found in *Whole Woman's Health*. *Post*, at 427 (dissenting opinion). I disagree. *Whole Woman's Health* first surveyed the benefits of Texas's admitting privileges requirement. 579 U. S., at 610–611. The Court then transitioned to examining the law's burdens: "At the same time, the record evidence indicates that the admitting-privileges requirement places a substantial obstacle in the path of a woman's choice." *Id.*, at 612 (internal quotation marks omitted; emphasis added). And the Court made clear that a law which has the purpose or effect of placing "a substantial obstacle in the path of a woman seeking an abortion before the fetus attains viability" imposes an "undue burden" and therefore violates the Constitution. *Id.*, at 589–590 (internal quotation marks omitted; emphasis deleted). Thus the discussion of benefits in *Whole Woman's Health* was not necessary to its holding.

⁴For the reasons the plurality explains, *ante*, at 316–320, I agree that the abortion providers in this case have standing to assert the constitutional rights of their patients.

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To begin, the two laws are nearly identical. Prior to enactment of the Texas law, abortion providers were required either to possess local hospital admitting privileges or to have a transfer agreement with a physician who had such privileges. Tex. Admin. Code, tit. 25, § 139.56(a) (2009). The new law, adopted in 2013, eliminated the option of having a transfer agreement. Providers were required to “[h]ave active admitting privileges at a hospital . . . located not further than 30 miles from the location at which the abortion is performed.” Tex. Health & Safety Code Ann. § 171.0031(a)(1)(A).

Likewise, Louisiana law previously required abortion providers to have either admitting privileges or a transfer agreement. La. Admin. Code, tit. 48, pt. I, § 4407(A)(3) (2003), 29 La. Reg. 706–707 (2003). In 2014, Louisiana removed the option of having a transfer agreement. Just like Texas, Louisiana now requires abortion providers to “[h]ave active admitting privileges at a hospital . . . located not further than thirty miles from the location at which the abortion is performed.” La. Rev. Stat. Ann. § 40:1061.10(A)(2)(a).

Crucially, the District Court findings indicate that Louisiana’s law would restrict access to abortion in just the same way as Texas’s law, to the same degree or worse. In Texas, “as of the time the admitting-privileges requirement began to be enforced, the number of facilities providing abortions dropped in half, from about 40 to about 20.” *Whole Woman’s Health*, 579 U.S., at 612. Eight abortion clinics closed in the months prior to the law’s effective date. *Ibid.* Another 11 clinics closed on the day the law took effect. *Ibid.*

Similarly, the District Court found that the Louisiana law would “result in a drastic reduction in the number and geographic distribution of abortion providers.” 250 F. Supp. 3d, at 87. At the time of the District Court’s decision, there were three clinics and five physicians performing abortions in Louisiana. *Id.*, at 40, 41. The District Court found that the new law would reduce “the number of clinics to one, or at most two,” and the number of physicians in Louisiana to

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“one, or at most two,” as well. *Id.*, at 87. Even in the best case, “the demand for services would vastly exceed the supply.” *Ibid.*

Whole Woman’s Health found that the closures of the abortion clinics led to “fewer doctors, longer waiting times, and increased crowding.” 579 U. S., at 613. The Court also found that “the number of women of reproductive age living in a county more than 150 miles from a provider increased from approximately 86,000 to 400,000 and the number of women living in a county more than 200 miles from a provider from approximately 10,000 to 290,000.” *Id.*, at 614 (internal quotation marks and alterations omitted).

The District Court here likewise found that the Louisiana law would result in “longer waiting times for appointments, increased crowding and increased associated health risk.” 250 F. Supp. 3d, at 81. The court found that Louisiana women already “have difficulty affording or arranging for transportation and childcare on the days of their clinic visits” and that “[i]ncreased travel distance” would exacerbate this difficulty. *Id.*, at 83. The law would prove “particularly burdensome for women living in northern Louisiana . . . who once could access a clinic in their own area [and] will now have to travel approximately 320 miles to New Orleans.” *Ibid.*

In Texas, “common prerequisites to obtaining admitting privileges that [had] nothing to do with ability to perform medical procedures,” including “clinical data requirements, residency requirements, and other discretionary factors,” made it difficult for well-credentialed abortion physicians to obtain such privileges. *Whole Woman’s Health*, 579 U. S., at 613. In particular, the Court found that “hospitals often condition[ed] admitting privileges on reaching a certain number of admissions per year.” *Id.*, at 612 (internal quotation marks omitted). But because complications requiring hospitalization are relatively rare, abortion providers were “unlikely to have any patients to admit” and thus were “unable

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to maintain admitting privileges or obtain those privileges for the future.” *Id.*, at 613.

So too here. “While a physician’s competency is a factor in assessing an applicant for admitting privileges” in Louisiana, “it is only one factor that hospitals consider in whether to grant privileges.” 250 F. Supp. 3d, at 46. Louisiana hospitals “may deny privileges or decline to consider an application for privileges for myriad reasons unrelated to competency,” including “the physician’s expected usage of the hospital and intent to admit and treat patients there, the number of patients the physician has treated in the hospital in the recent past, the needs of the hospital, the mission of the hospital, or the business model of the hospital.” *Ibid.*⁵

And the District Court found that, as in Texas, Louisiana “hospitals often grant admitting privileges to a physician because the physician plans to provide services in the hospital” and that “[i]n general, hospital admitting privileges are not provided to physicians who never intend to provide services in a hospital.” *Id.*, at 49. But “[b]ecause, by all accounts, abortion complications are rare, an abortion provider is unlikely to have a consistent need to admit patients.” *Id.*, at 50 (citations omitted).⁶

Importantly, the District Court found that “since the passage of [the Louisiana law], all five remaining doctors have attempted *in good faith* to comply” with the law by applying

⁵ JUSTICE ALITO misunderstands my discussion of credentials as focusing on the law’s lack of benefits. See *post*, at 380 (dissenting opinion). But my analysis, like *Casey*, is limited to the law’s effect on the availability of abortion.

⁶ I agree with JUSTICE ALITO that the validity of admitting privileges laws “depend[s] on numerous factors that may differ from State to State.” *Post*, at 385 (dissenting opinion). And I agree with JUSTICE GORSUCH that “[w]hen it comes to the factual record, litigants normally start the case on a clean slate.” *Post*, at 422 (dissenting opinion). Appreciating that others may in good faith disagree, however, I cannot view the record here as in any pertinent respect sufficiently different from that in *Whole Woman’s Health* to warrant a different outcome.

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for admitting privileges, yet have had very little success. *Id.*, at 77–78 (emphasis added). This finding was necessary to ensure that the physicians’ inability to obtain admitting privileges was attributable to the new law rather than a half-hearted attempt to obtain privileges. Only then could the District Court accurately identify the Louisiana law’s burden on abortion access.

The question is not whether we would reach the same findings from the same record. These District Court findings “entail[ed] primarily . . . factual work” and therefore are “review[ed] only for clear error.” *U. S. Bank N. A. v. Village at Lakeridge, LLC*, 583 U. S. 387, 394, 396 (2018). Clear error review follows from a candid appraisal of the comparative advantages of trial courts and appellate courts. “While we review transcripts for a living, they listen to witnesses for a living. While we largely read briefs for a living, they largely assess the credibility of parties and witnesses for a living.” *Taglieri v. Monasky*, 907 F. 3d 404, 408 (CA6 2018) (en banc).

We accordingly will not disturb the factual conclusions of the trial court unless we are “left with the definite and firm conviction that a mistake has been committed.” *United States v. United States Gypsum Co.*, 333 U. S. 364, 395 (1948). In my view, the District Court’s work reveals no such clear error, for the reasons the plurality explains. *Ante*, at 323–339. The District Court findings therefore bind us in this case.

* * *

Stare decisis instructs us to treat like cases alike. The result in this case is controlled by our decision four years ago invalidating a nearly identical Texas law. The Louisiana law burdens women seeking previability abortions to the same extent as the Texas law, according to factual findings that are not clearly erroneous. For that reason, I concur in the judgment of the Court that the Louisiana law is unconstitutional.

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JUSTICE THOMAS, dissenting.

Today a majority of the Court perpetuates its ill-founded abortion jurisprudence by enjoining a perfectly legitimate state law and doing so without jurisdiction. As is often the case with legal challenges to abortion regulations, this suit was brought by abortionists and abortion clinics. Their sole claim before this Court is that Louisiana's law violates the purported substantive due process right of a woman to abort her unborn child. But they concede that this right does not belong to them, and they seek to vindicate no private rights of their own. Under a proper understanding of Article III, these plaintiffs lack standing to invoke our jurisdiction.

Despite the fact that we granted Louisiana's petition specifically to address whether "abortion providers [can] be presumed to have third-party standing to challenge health and safety regulations on behalf of their patients," Conditional Cross-Pet. in No. 18–1460, p. i, a majority of the Court all but ignores the question. The plurality and THE CHIEF JUSTICE ultimately cast aside this jurisdictional barrier to conclude that Louisiana's law is unconstitutional under our precedents. But those decisions created the right to abortion out of whole cloth, without a shred of support from the Constitution's text. Our abortion precedents are grievously wrong and should be overruled. Because we have neither jurisdiction nor constitutional authority to declare Louisiana's duly enacted law unconstitutional, I respectfully dissent.

I

For most of its history, this Court maintained that private parties could not bring suit to vindicate the constitutional rights of individuals who are not before the Court. *Kowalski v. Tesmer*, 543 U. S. 125, 135 (2004) (THOMAS, J., concurring) (citing *Clark v. Kansas City*, 176 U. S. 114, 118 (1900)). But in the 20th century, the Court began to deviate from this traditional rule against third-party standing. See *Truax v. Raich*, 239 U. S. 33, 38–39 (1915); *Pierce v. Society of Sis-*

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ters, 268 U. S. 510, 535–536 (1925). From these deviations emerged our prudential third-party standing doctrine, which allows litigants to vicariously assert the constitutional rights of others when “the party asserting the right has a ‘close’ relationship with the person who possesses the right” and “there is a ‘hindrance’ to the possessor’s ability to protect his own interests.” *Kowalski*, *supra*, at 130 (quoting *Powers v. Ohio*, 499 U. S. 400, 411 (1991)).¹

The plurality feints toward this doctrine, claiming that third-party standing for abortionists is well settled by our precedents. But, ultimately, it dodges the question, claiming that Louisiana’s standing challenge was waived below. Both assertions are erroneous. First, there is no controlling precedent that sets forth the blanket rule advocated for by plaintiffs here—*i. e.*, abortionists may challenge health and safety regulations based solely on their role in the abortion process. Second, I agree with JUSTICE ALITO that Louisi-

¹In practice, this doctrine’s application has been unconvincing and unpredictable, which has long caused me to question its legitimacy. See, *e. g.*, *United States v. Sineneng-Smith*, 590 U. S. 371, 388–390 (2020) (THOMAS, J., concurring); *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582, 629–633 (2016) (THOMAS, J., dissenting); *Kowalski*, 543 U. S., at 135 (THOMAS, J., concurring). For example, the Court has held that attorneys cannot bring suit to vindicate the Sixth Amendment rights of their potential clients due to the lack of a current close relationship, *id.*, at 130–131, but the Court permits defendants to seek relief based on the Fourteenth Amendment equal protection rights of potential jurors whom they have never met, *Powers*, 499 U. S., at 410–416; *J. E. B. v. Alabama ex rel. T. B.*, 511 U. S. 127, 129 (1994). And today, the plurality reaffirms our precedent allowing beer vendors to assert the Fourteenth Amendment rights of their potential customers. *Ante*, at 319 (citing *Craig v. Boren*, 429 U. S. 190, 192 (1976)). But it is fair to wonder whether gun vendors could expect to receive the same privilege if they seek to vindicate the Second Amendment rights of their customers. Given this Court’s ad hoc approach to third-party standing and its tendency to treat the Second Amendment as a second-class right, their time would be better spent waiting for Godot.

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ana did not waive its standing challenge below. *Post*, at 400–401 (dissenting opinion).

But even if there were a waiver, it would not be relevant. Louisiana argues that the abortionists and abortion clinics lack standing under Article III to assert the putative rights of their potential clients. No waiver, however explicit, could relieve us of our independent obligation to ensure that we have jurisdiction before addressing the merits of a case. See *DaimlerChrysler Corp. v. Cuno*, 547 U.S. 332, 341 (2006). And under a proper understanding of Article III’s case-or-controversy requirement, plaintiffs lack standing to invoke our jurisdiction because they assert no private rights of their own, seeking only to vindicate the putative constitutional rights of individuals not before the Court.

A

The Court has previously asserted that the traditional rule against third-party standing is “not constitutionally mandated, but rather stem[s] from a salutary ‘rule of self-restraint’” motivated by “prudential” concerns. *Craig v. Boren*, 429 U.S. 190, 193 (1976) (quoting *Barrows v. Jackson*, 346 U.S. 249, 255 (1953)). The plurality repeats this well-rehearsed claim, accepting its validity without question. See *ante*, at 316–317. But support for this assertion is shallow, to say the least, and it is inconsistent with our more recent standing precedents.

As an initial matter, this Court has never provided a coherent explanation for why the rule against third-party standing is properly characterized as prudential. Many cases reciting this claim rely on the Court’s decision in *Barrows*, which stated that the rule against third-party standing is a “rule of self-restraint” “[a]part from the jurisdictional requirement” of Article III, 346 U.S., at 255. But *Barrows* provides no reasoning to support that distinction and even admits that the rule against third-party standing is “not al-

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ways clearly distinguished from the constitutional limitation[s]” on standing. *Ibid.* The sole authority *Barrows* cites in support of the rule’s “prudential” label is a single-Justice concurrence in *Ashwander v. TVA*, 297 U.S. 288, 346–348 (1936) (opinion of Brandeis, J.).

Justice Brandeis’ concurrence, however, raises more questions than it answers. The opinion does not directly reference third-party standing. It only obliquely refers to the concept by invoking the broader requirement that a plaintiff must “show that he is injured by [the law’s] operation.” *Id.*, at 347. Justice Brandeis claims that this requirement was adopted by the Court “for its own governance in the cases confessedly within its jurisdiction.” *Id.*, at 346. But most of the cases he cites frame the matter in terms of the Court’s jurisdiction and authority; none of them invoke prudential justifications. See, e.g., *Tyler v. Judges of Court of Registration*, 179 U.S. 405, 407–410 (1900); *Hendrick v. Maryland*, 235 U.S. 610, 621 (1915); *Massachusetts v. Mellon*, 262 U.S. 447, 480 (1923). Thus, the “prudential” label for the rule against third-party standing remains a bit of a mystery.

It is especially puzzling that a majority of the Court insists on continuing to treat the rule against third-party standing as prudential when our recent decision in *Lexmark Int’l, Inc. v. Static Control Components, Inc.*, 572 U.S. 118 (2014), questioned the validity of our prudential standing doctrine more generally. In that case, we acknowledged that requiring a litigant who has Article III standing to also demonstrate “prudential standing” is inconsistent “with our recent reaffirmation of the principle that ‘a federal court’s “obligation” to hear and decide’ cases within its jurisdiction ‘is “virtually unflagging.”’” *Id.*, at 125–126 (quoting *Sprint Communications, Inc. v. Jacobs*, 571 U.S. 69, 77 (2013)). The Court therefore suggested that the “prudential” label for these doctrines was “inapt.” *Lexmark*, 572 U.S., at 127, n. 3. As an example, it noted that the Court previously considered the rule against generalized grievances to be “pru-

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dential” but now recognizes that rule to be a part of Article III’s case-or-controversy requirement. *Ibid.* The Court specifically questioned the prudential label for the rule against third-party standing, but because *Lexmark* did not involve any questions of third-party standing, the Court stated that “consideration of that doctrine’s proper place in the standing firmament [could] await another day.” *Id.*, at 128, n. 3.

The Court’s previous statements on the rule against third-party standing have long suggested that the “proper place” for that rule is in Article III’s case-or-controversy requirement. The Court has acknowledged that the traditional rule against third-party standing is “closely related to Art[icle] III concerns.” *Warth v. Seldin*, 422 U.S. 490, 500 (1975). It has repeatedly noted that the rule “is not completely separable from Art[icle] III’s requirement that a plaintiff have a sufficiently concrete interest in the outcome of [the] suit to make it a case or controversy.” *Secretary of State of Md. v. Joseph H. Munson Co.*, 467 U.S. 947, 955, n. 5 (1984) (internal quotation marks omitted); see also *Barrows*, *supra*, at 255 (the rule against third-party standing is “not always clearly distinguished from the constitutional limitation[s]” on standing). Moreover, the Court has even expressly stated that the rule against third-party standing is “grounded in Art[icle] III limits on the jurisdiction of federal courts to actual cases and controversies.” *New York v. Ferber*, 458 U.S. 747, 767, n. 20 (1982).

And most recently, in *Spokeo, Inc. v. Robins*, 578 U.S. 330 (2016), the Court appeared to incorporate the rule against third-party standing into its understanding of Article III’s injury-in-fact requirement. There, the Court stated that to establish an injury-in-fact a plaintiff must “show that he or she suffered ‘an invasion of a legally protected interest’ that is ‘concrete and particularized’ and ‘actual or imminent, not conjectural or hypothetical.’” *Id.*, at 339 (quoting *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992)). The Court

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further explained that whether a plaintiff “alleges that [the defendant] violated *his* statutory rights” rather than “the statutory rights of other people” was a question of “particularization” for an Article III injury. 578 U. S., at 340 (internal quotation marks omitted). It is hard to reconcile this language in *Spokeo* with the plurality’s assertion that third-party standing is permitted under Article III.

B

A brief historical examination of Article III’s case-or-controversy requirement confirms what our recent decisions suggest: The rule against third-party standing is constitutional, not prudential. The judicial power is limited to ““cases and controversies of the sort traditionally amenable to, and resolved by, the judicial process.”” *Id.*, at 343 (THOMAS, J., concurring) (quoting *Vermont Agency of Natural Resources v. United States ex rel. Stevens*, 529 U. S. 765, 774 (2000)); see also *Muskrat v. United States*, 219 U. S. 346, 356–357 (1911). Thus, to ascertain the scope of Article III’s case-or-controversy requirement, “we must ‘refer directly to the traditional, fundamental limitations upon the powers of common-law courts.’” *Spokeo*, *supra*, at 344 (THOMAS, J., concurring) (quoting *Honig v. Doe*, 484 U. S. 305, 340 (1988) (Scalia, J., dissenting)). “One focus” of these traditional limitations was “on the particular parties before the court, and whether the rights that they [were] invoking [were] really theirs to control.” Woolhandler & Nelson, *Does History Defeat Standing Doctrine?* 102 Mich. L. Rev. 689, 732 (2004). An examination of these limitations reveals that a plaintiff could not establish a case or controversy by asserting the constitutional rights of others.

The limitations imposed on suits at common law varied based on the type of right the plaintiff sought to vindicate. *Spokeo*, 578 U. S., at 344 (THOMAS, J., concurring). The rights adjudicated by common-law courts generally fell into

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one of two categories: public or private. Public rights are those “owed ‘to the whole community . . . in its social aggregate capacity.’” *Id.*, at 345 (quoting 4 W. Blackstone, Commentaries *5). Private rights, on the other hand, are those “‘belonging to individuals, considered as individuals.’” *Spokeo, supra*, at 344 (THOMAS, J., concurring) (quoting 3 Blackstone, Commentaries *2).

When a plaintiff sought to vindicate a private right, “courts historically presumed that the plaintiff suffered a *de facto* injury merely from having his personal, legal rights invaded.” *Spokeo, supra*, at 344 (THOMAS, J., concurring). But a plaintiff generally “need[ed] to have a private interest of his or her own to litigate; otherwise, no sufficient interest [was] at stake on the plaintiff’s side, and the clash of interests necessary for a ‘Case’ or ‘Controversy’ [did] not exist.” *Woolhandler & Nelson, supra*, at 723. Thus, 19th-century judges uniformly refused to “listen to an objection made to the constitutionality of an act by a party whose rights” were not at issue. *Clark*, 176 U. S., at 118 (internal quotation marks omitted); see also, *e. g.*, *Tyler*, 179 U. S., at 406–407; *Supervisors v. Stanley*, 105 U. S. 305, 311 (1882); *United States v. Ferreira*, 13 How. 40, 51–52 (1852); *Owings v. Norwood’s Lessee*, 5 Cranch 344, 348 (1809) (Marshall, C. J.); *In re Wellington*, 33 Mass. 87, 96 (1834) (Shaw, C. J.).²

Moreover, it was not enough for a plaintiff to allege *damnum*—*i. e.*, real-world damages or practical injury—if the

²Common-law courts’ recognition of *prochein ami* or “next friend” standing is not inconsistent with this point. In those cases, the third party was “no party to the suit in the technical sense” but rather served as “an officer of the court” and was legally “appointed by [the court] to look after the interests of [the party lacking legal capacity],” who remained the real party in interest on “whom the judgment in the action [was] consequently binding.” *Blumenthal v. Craig*, 81 F. 320, 321–322 (CA3 1897) (internal quotation marks omitted). In contrast, the real parties in interest here—women seeking abortions in Louisiana—cannot be bound by a judgment against abortionists and abortion clinics.

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law he was challenging did not violate a legally protected interest of his own. At common law, this sort of “factual harm without a legal injury was *damnum absque injuria* and provided no basis for relief.” Hessick, *Standing, Injury in Fact, and Private Rights*, 93 Cornell L. Rev. 275, 280–281 (2008). As Justice Dodderidge explained in 1625, “*injuria & damnum* are the two grounds for the having [of] all actions, and without [both of] these, no action lieth.” *Cable v. Rogers*, 3 Bulst. 311, 312, 81 Eng. Rep. 259. In the 18th century, many common-law courts ceased requiring *damnum* in suits alleging violations of private rights. See, e.g., *Ashby v. White*, 2 Raym. Ld. 938, 92 Eng. Rep. 126, 137 (K. B.) (Holt, C. J.), *aff’d*, 3 Raym. Ld. 320, 92 Eng. Rep. 710, 712 (H. L. 1703); see also *Webb v. Portland Mfg. Co.*, 29 F. Cas. 506, 507 (No. 17,322) (CC Me. 1838) (Story, J.). But they continued to require legal injury, adhering to the “obvious” and “ancient maxim” that one’s real-world damages alone cannot “lay the foundation of an action.” *Parker v. Griswold*, 17 Conn. 288, 302–303 (1846). Thus, a plaintiff had to assert “[a]n injury, [which,] legally speaking, consists of a wrong done to a person, or, in other words, a violation of his right.” *Id.*, at 302.

This brief historical review demonstrates that third-party standing is inconsistent with the case-or-controversy requirement of Article III. When a private plaintiff seeks to vindicate someone else’s legal injury, he has no private right of his own genuinely at stake in the litigation. Even if the plaintiff has suffered damages as a result of another’s legal injury, he has no standing to challenge a law that does not violate his own private rights.

C

Applying these principles to the case at hand, plaintiffs lack standing under Article III and we, in turn, lack jurisdiction to decide these cases. Thus, “[i]n light of th[e] ‘overriding and time-honored concern about keeping the Judiciary’s

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power within its proper constitutional sphere, we must put aside the natural urge to proceed directly to the merits of [an] important dispute and to “settle” it for the sake of convenience and efficiency.’” *Hollingsworth v. Perry*, 570 U. S. 693, 704–705 (2013) (ROBERTS, C. J., for the Court) (quoting *Raines v. Byrd*, 521 U. S. 811, 820 (1997)).

1

Contrary to the plurality’s assertion otherwise, *ante*, at 320, abortionists’ standing to assert the putative rights of their clients has not been settled by our precedents. It is true that this Court has reflexively allowed abortionists and abortion clinics to vicariously assert a woman’s putative right to abortion. But oftentimes the Court has not so much as addressed standing in those cases. See, *e.g.*, *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582 (2016); *Gonzales v. Carhart*, 550 U. S. 124 (2007); *Ayotte v. Planned Parenthood of Northern New Eng.*, 546 U. S. 320 (2006); *Stenberg v. Carhart*, 530 U. S. 914 (2000); *Mazurek v. Armstrong*, 520 U. S. 968 (1997) (*per curiam*); *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833 (1992). And questions “merely lurk[ing] in the record, neither brought to the attention of the court nor ruled upon,” are not “considered as having been so decided as to constitute precedents.” *Webster v. Fall*, 266 U. S. 507, 511 (1925); see also *Illinois Bd. of Elections v. Socialist Workers Party*, 440 U. S. 173, 183 (1979). Specifically, when it comes “to our own judicial power or jurisdiction, this Court has followed the lead of Mr. Chief Justice Marshall who held that this Court is not bound by a prior exercise of jurisdiction in a case where it was not questioned and it was passed *sub silentio*.” *United States v. L. A. Tucker Truck Lines, Inc.*, 344 U. S. 33, 38 (1952) (citing *United States v. More*, 3 Cranch 159, 172 (1805) (Marshall, C. J., for the Court)).

The first—and only—time the Court squarely addressed this question with a reasoned decision was in *Singleton v.*

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Wulff, 428 U. S. 106 (1976).³ In that case, a fractured Court concluded that two abortionists had standing to challenge a State's refusal to provide Medicaid reimbursements for abortions. Perfunctorily applying this Court's requirements for third-party standing, Justice Blackmun, joined by three other Justices, asserted that abortionists generally had standing to litigate their clients' rights. *Id.*, at 113–118 (plurality opinion). Justice Stevens concurred on considerably narrower grounds, reasoning that the abortionists had standing because they had a financial stake in the outcome of the litigation and sought to vindicate their own constitutional rights as well. *Id.*, at 121 (opinion concurring in part). Notably, Justice Stevens declined to join the plurality's discussion of third-party standing, explaining that he was “not sure whether [that analysis] would, or should, sustain the doctors' standing, apart from” their own legal rights and financial interests being at stake in that specific case. *Id.*, at 122. The

³ Although the Court concluded that the abortionists had standing to challenge the constitutionality of abortion regulations in *Doe v. Bolton*, 410 U. S. 179 (1973), it did so only in dicta, *id.*, at 188–189. The abortionists' complaintiffs were pregnant women whom the Court determined had standing to assert their own rights, and thus whether the abortionists had standing was “a matter of no great consequence.” *Id.*, at 188. Even so, the Court only cursorily considered the question whether the threat of prosecution faced by the abortionists was a sufficiently direct injury under the Court's then-existing standing doctrine, *id.*, at 188–189, which was considerably more lenient than our current understanding. The Court did not engage in any meaningful Article III analysis or refer to this Court's third-party standing doctrine. *Ibid.*; see also *Akron v. Akron Center for Reproductive Health, Inc.*, 462 U. S. 416, 440, n. 30 (1983) (concluding without any analysis that an abortionist had standing to raise a claim on behalf of his minor patients). And notably, the abortionists in that case had brought suit to vindicate their own constitutional rights to “practice their . . . professio[n].” *Doe, supra*, at 186; see also *Planned Parenthood of Central Mo. v. Danforth*, 428 U. S. 52, 62 (1976) (concluding, without any analysis of Article III or the third-party standing doctrine, that abortionists had standing in a suit alleging violations of both their own constitutional rights and those of their clients).

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four remaining Justices dissented in part, concluding that the abortionists lacked standing to litigate the rights of their clients. *Id.*, at 122–131 (Powell, J., concurring in part and dissenting in part). Because Justice Stevens’ opinion “con-
curred in the judgmen[t] on the narrowest grounds,” it is the controlling opinion regarding abortionists’ third-party standing. *Marks v. United States*, 430 U. S. 188, 193 (1977).⁴

To the extent Justice Stevens’ opinion could be read as concluding that abortionists have standing to vicariously assert their clients’ rights so long as the abortionists establish standing on their own legal claims, his position has been abrogated by this Court’s more recent decisions, which have “confirm[ed] that a plaintiff must demonstrate standing for each claim he seeks to press.” *DaimlerChrysler Corp.*, 547 U. S., at 352. But more importantly, Justice Stevens’ opinion does not support the abortionists in these cases, because his opinion rested on case-specific facts not implicated here—namely, the fact that the abortionists would directly receive Medicaid payments from the defendant agency if they prevailed and that they asserted violations of *their own* constitutional rights. In these cases, there is no dispute that the abortionists’ sole claim before this Court is that Louisiana’s law violates the purported substantive due process rights of *their clients*.

2

Under a proper understanding of Article III, plaintiffs lack standing. As explained above, in suits seeking to vindicate private rights, the owners of those rights can establish a sufficient injury simply by asserting that their rights have been violated. Constitutional rights are generally considered

⁴Three Justices of this Court have recently taken the position that this rule from *Marks*, 430 U. S. 188, does not necessarily apply in all 4–1–4 cases, and that such decisions can sometimes produce “no controlling opinion at all.” *Ramos v. Louisiana*, 590 U. S. 83, 103 (2020) (principal opinion). But even under their view, Justice Blackmun’s plurality in *Singleton* would not be considered binding precedent.

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“private rights” to the extent they “‘belon[g] to individuals, considered as individuals.’” *Spokeo*, 578 U. S., at 344 (THOMAS, J., concurring) (quoting 3 Blackstone, Commentaries *2); see also *United States v. Sineneng-Smith*, 590 U. S. 371, 389 (2020) (THOMAS, J., concurring). And the purported substantive due process right to abort an unborn child is no exception—it is an individual right that is inherently personal. After all, the Court “creat[ed the] right” based on the notion that abortion “‘involv[es] the most intimate and personal choices a person may make in a lifetime, choices central to personal dignity and autonomy.’” *Whole Woman’s Health*, 579 U. S., at 632–633 (THOMAS, J., dissenting) (quoting *Casey*, 505 U. S., at 851 (majority opinion)). Because this right belongs to the woman making that choice, not to those who provide abortions, plaintiffs cannot establish a personal legal injury by asserting that this right has been violated.⁵

The only injury asserted by plaintiffs in this suit is the possibility of facing criminal sanctions if the abortionists conduct abortions without admitting privileges in violation of the law. See Response and Reply for Petitioners (No. 18–1460)/Cross-Respondents (No. 18–1323), p. 34. But plaintiffs do not claim any right to provide abortions, nor do they contest that the State has authority to regulate such procedures.⁶ They have therefore demonstrated only real-world damages (or more accurately, the *possibility* of real-world damages), but no legal injury, or “invasion of a legally pro-

⁵Notably, plaintiffs point to no evidence in the record of women who seek abortions in Louisiana actually opposing this law on the ground that it violates their constitutional rights.

⁶Although plaintiffs initially argued that Louisiana’s law also violated their procedural due process rights by requiring them to obtain admitting privileges in an unreasonably short time, App. 24, 28, they have since abandoned that claim. And even if they had asserted violations of their own rights before this Court, those legal injuries would be insufficient to establish standing for a distinct claim based on their clients’ putative rights. See *supra*, at 369.